

# Exporting Recycled Plastic from Nigeria: The Regulatory Pathway — and What's Changed

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Nigeria's push toward a circular economy for plastic waste — formalised in the Federal Ministry of Environment's Solid Waste Management Policy — has created a real export opportunity for processed plastic: hot-washed flakes, sorted single-resin pellets, and similar recovered material bound for recycling facilities abroad. But getting a shipment of processed plastic out of Nigeria and into a buyer's hands legally involves two separate regulatory tracks: international waste-shipment rules, and Nigeria's own export administration.

## The Waste Classification Question

Under the Basel Convention (as tightened by amendments that took effect from 1 January 2021), plastic waste is sorted into categories with very different levels of control. Clean, well-sorted plastic that is easy to recycle — covered by Basel code B3011 — can move under lighter "green list" controls. B3011 covers non-halogenated polymers, cured resins, and specifically named fluorinated polymers (excluding post-consumer waste), and can also cover mixtures of polyethylene, polypropylene and PET, provided each material will be separately recycled in an environmentally sound way at its destination and the mixture is essentially free of contamination. Processed material — hot-washed flakes, single-resin pellets, and similar outputs — generally qualifies if it meets these conditions. Anything that doesn't meet the B3011 threshold falls under stricter notification-and-consent controls, requiring formal consent from the receiving country's authorities before it can move.

## Nigeria's Own Export Requirements

Separately from the waste classification question, any company exporting from Nigeria needs to work through the standard non-oil export framework:

- Registration with the Nigerian Export Promotion Council (NEPC), which requires a completed application, certificate of incorporation, tax clearance certificate, director particulars, and the company's memorandum and articles of association.
- Completion of a Nigerian Export Proceeds (NXP) form with an authorised dealer bank, distributed to the processing bank, the Central Bank of Nigeria, and the Nigerian Customs Service, with endorsed copies returned after shipment.
- An export or sales contract covering trade terms, mode of payment, mode of delivery, the enforcement forum, and dispute resolution.
- Standard shipping and compliance documentation: bill of lading, certificate of origin, commercial invoice, single goods declaration, clean certificate of inspection, and packing list, plus a NEPC registration certificate and any relevant quality certificate.
- Pre-shipment inspection by a Pre-shipment Inspection Agent (PIA) appointed by government for the relevant geographic zone, and repatriation of export proceeds into a domiciliary account with the processing bank.

## What's Changed Since This Framework Was Last Reviewed

Three developments are worth building into current planning.

First, on the EU side: the EU has replaced its old Waste Shipment Regulation with Regulation (EU) 2024/1157, in force since May 2024 and largely applicable from May 2026, moving toward a centralised digital notification system. It is worth being precise about direction here — the headline change, a ban on plastic waste exports to non-OECD countries taking effect from 21 November 2026, restricts the EU from sending plastic waste out to countries like Nigeria; it does not restrict a Nigerian exporter's ability to ship properly classified, green-listed material into the EU, which continues along broadly the same prior-notification-and-consent lines described above. Nigeria has separately applied, ahead of a February 2025 deadline, to be included on the list of non-OECD countries the EU may resume sending waste to once the ban period ends — a different process from a Nigerian exporter's own outbound trade, but one that signals continued Nigeria–EU engagement on this material.

Second, on the Nigerian side: domestic export administration has moved on from the paper-based 2017 documentation regime. The CBN's export compliance framework has been updated (including a new, fourth edition of its Foreign Exchange Manual effective from mid-2026), and reported changes to non-oil export levies mean the specific mechanics — form processing, repatriation timelines, and applicable charges — should be confirmed directly with the exporter's bank and the NEPC before each shipment, rather than assumed from older guidance.

Third, and unrelated to waste-shipment law entirely: trade with Russia now carries a practical banking complication that did not exist when Nigeria's plastics export framework was first reviewed. Since Russia's invasion of Ukraine in February 2022, most major Russian banks have been excluded from the SWIFT international payment messaging system and are subject to layered international financial sanctions. Nigeria has not itself sanctioned Russia, and there is no Nigerian legal barrier to the trade, but a Nigerian exporter shipping to a Russian buyer may find its own bank unwilling or unable to process the resulting payment through normal correspondent banking channels, or may need to arrange payment through non-sanctioned intermediary banks or alternative settlement arrangements. This is a commercial and banking-due-diligence issue to work through with the buyer and the exporter's bank before committing to a Russia-bound shipment — quite separate from, and in addition to, the waste-classification and export-documentation questions above.

#### **A note on currency of the law**

*Basel B3011 classification and Nigeria's core NEPC/NXP/PIA export framework remain the operative rules for shipping processed plastic out of Nigeria.*

*The EU's Waste Shipment Regulation (EU) 2024/1157 modernises the EU-side framework but does not close off Nigeria-to-EU shipments of properly classified material; its new export ban runs in the opposite direction (EU to non-OECD countries) from 21 November 2026.*

*Exporters should reconfirm current CBN documentation and repatriation requirements directly with their bank given ongoing updates to Nigeria's foreign exchange and export-levy framework, and should treat payment routing for any Russia-bound shipment as a live banking-compliance question rather than a routine matter.*